

26STCV01060 26STCV01060

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 26STCV01060 Hearing Date: September 1, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 1, 2026 TRIAL DATE: May 15, 2028

CASE: Zhao Zehao v. BMW of North America, LLC

CASE NO.: 26STCV01060

DEFENDANT

BMW OF NORTH AMERICA, LLC'S MOTION

FOR

ENTRY OF PROTECTIVE ORDER

DEFENDANT

BMW OF NORTH AMERICA, LLC'S MOTIONS TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO
DEFENDANT'S SPECIAL INTERROGATORIES, FORM INTERROGATORIES, REQUEST FOR
PRODUCTION, REQUEST FOR ADMISSIONS, SET ONE (1) AND REQUEST FOR SANCTIONS

Plaintiff, Zhao Zehao, brings this Song-Beverly action
against Defendant, BMW of North America, LLC.

Before the court are four motions filed by Defendant: (1) Motion for
Entry of Protective Order, (2) three Motions to Compel Plaintiff's Further Responses
to Defendant's Special Interrogatories, Request for Production, and Request for
Admissions, Set One, and Request for Sanctions.

The court addresses these motions in turn.

I. DISCUSSION

RE MOTION FOR ENTRY OF PROTECTIVE ORDER

A. Background

On March 27, 2026, Defendant filed a motion for entry of protective order to allow the deposition of Defendant's person most qualified ("PMQ") to be conducted remotely on a mutually agreeable date.

On June 16, 2026, Defendant filed an opposition.

On June 24, 2026, Plaintiff filed a reply.

B. Legal Standard

Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order.¿ (Code Civ. Proc., § 2025.420(a).)¿ The motion must be accompanied by a meet and confer declaration. (Id.) The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.¿ (Code Civ. Proc., § 2025.420(b).)¿

C.

Application

The crux of the motion is simple:

Defendant seeks a protective order permitting the deposition of its PMQ to proceed remotely because Defendant's PMQ lives 216 miles away from the noticed deposition location and serves as Defendant's PMQ for cases across California.

Plaintiff counters that counsel is willing to travel to the PMQ's location. Alternatively, Plaintiff states willingness to take the deposition remotely if Defendant agrees to provide the PMQ's address for personal service of subpoenas compelling the PMQ's attendance at trial, or if Defendant executes a written stipulation to accept service on the PMQ's behalf of a Notice to Appear at Trial in Lieu of Subpoena.

The parties muddy the waters by referencing the conduct of opposing counsel in other cases. The court does not view any of those details relevant to the merits of this motion. Based on the representations made by the parties in this case, the court finds good cause exists to grant the requested relief. The distance and the PMQ's participation in other cases, of which the court presumes there are many, supplies ample grounds for protection. At first glance, Plaintiff's willingness to take the deposition in-person at a location closer to the PMQ's residence seems to address any undue burden or expense. However, the real reason Plaintiff wants to conduct an in-person deposition is to ensure the PMQ is served with a subpoena commanding the PMQ's attendance at trial. If that is the case, Plaintiff fails to explain why serving Defense counsel with Notice to Appear at Trial would be insufficient to require the PMQ's attendance at trial.

D.

Conclusion

Based on the foregoing, the motion for protective order is GRANTED. The PMQ deposition is to take place remotely.

III. DISCUSSION RE MOTIONS TO COMPEL FURTHER

A. Background

On July 1, 2026, Defendant filed three motions to compel Plaintiff's further responses to Defendant's first set of Special Interrogatories, Form Interrogatories, Request for Production of Documents, and Request for Admissions. Defendant requests sanctions against Plaintiff and his counsel of record.

The motions are unopposed.

B. Legal Standard

Under Code of Civil Procedure sections 2030.300, 2031.310, and 2033.290, parties may move for a further response to interrogatories, requests for production of documents, and requests for admissions where an answer to the discovery requests are evasive or incomplete or where an objection is without merit or too general. 222

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Notice of the motions must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., §§ 2030.300(c); 2031.310(c); 2033.290(c).) 222

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Finally, California Rules of Court, rule 3.1345(a)(3) requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. 2

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Monetary Sanctions 222

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Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.) 222222

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If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a

declaration supporting the amount of any monetary sanction.~~~~~

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Sanctions shall be awarded against any party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust.~ (Code Civ. Proc., §§ 2030.300(d); 2031.310(h); 2033.290(d).)~~

C. Application

Defendant

seeks further responses to Special Interrogatories (SROG) Nos. 1, 2, 3, 20, 21, 24, 25, 28, 53; Form Interrogatories (FROG) Nos. 2.7, 9.2, 12.1, 12.4, 17.1; Request for Production (RFP) Nos. 6, 11, 13, 20, 25, 26, 28, 30, 31, 33, 34, 35, 37, 38, 50, 51; and Request for Admissions (RFA) Nos. 24, 25, 26, 33, 37, 38, 40, 43, 44, 51, 52, 54, 57, 61.

The court

has reviewed Plaintiff's responses.

Plaintiff asserted meritless objections and evasive substantive responses to these discovery requests.

Further responses are warranted.

Monetary

Sanctions

Given the

court's rulings the court finds sanctions are warranted. Accordingly, sanctions are imposed against Plaintiff and its counsel of record in the requested sum of \$5,805.

D. Conclusion

The

unopposed motions to compel further are GRANTED. Plaintiff is ordered to provide further responses within 30 days of this order. Plaintiff

and his counsel of record are ordered to pay, jointly and severally, sanctions in the sum of \$5,805 within 30 days of this order.

IV. DISPOSITIONS

The motion
for protective order is Granted. The PMQ
deposition is to take place remotely.

The unopposed motions to compel further are Granted. Plaintiff is ordered to provide further
responses within 30 days of this order.

Plaintiff and his counsel of record are ordered to pay, jointly and
severally, sanctions in the sum of \$5,805 within 30 days of this order.

Defendant is ordered to give notice, unless waived.

Dated: September 1, 2026

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↷ Brock T. Hammond

↷ Judge of the Superior Court↷